

SENATE BILL 2649

By Roberts

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 39 and Title 40, relative to criminal
investigations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 6, Part 1, is amended by
adding the following new section:

(a) The Tennessee bureau of investigation must establish a cold case division,
to be divided into three (3) geographic regions, each staffed by:

(1) A regional director; and

(2) No fewer than five (5) cold case detectives.

(b) Each local law enforcement agency must submit unsolved missing person or
homicide cases to the cold case division following the passage of ten (10) years without
resolution.

(c) A family member of a missing person or homicide victim may request that the
cold case division review their family member's unresolved case if:

(1) The local law enforcement agency with jurisdiction over the case
lacks a dedicated missing persons or homicide division;

(2) The victim resided or the offense occurred in a municipality of fewer
than five thousand (5,000) residents; or

(3) The case has been unresolved for ten (10) years or more.

(d) If the victim's family has hired a licensed and insured private investigator,
then the private investigator may assist and collaborate with the local law enforcement
agency during the cold case investigation.

(e) If ten (10) years have passed without resolution of the family member's missing person or homicide case, then the family member who filed the missing person report may request controlled access to the case file. Access must be granted if:

(1) The requester has no criminal convictions;

(2) The requester has previously submitted a formal statement that is retained in the case file; and

(3) The requester is not a suspect or person of interest in the case.

(f) Access under subsection (e) must occur according to the following:

(1) Access is limited to viewing paper and electronic documents;

(2) The requester shall not make photographs, copies, or recordings of case materials; and

(3) A violation of subdivision (f)(1) or (2) may result in revocation of the requester's access.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.